

24NWCV03548 24NWCV03548

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-18

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C08%2F18%2F2026

Source SHA-256: c812db918fa7ba7d8db8f7cfaf14e48d67164acad204da702f0086dbcb50f6a8

Case Number: 24NWCV03548 Hearing Date: August 18, 2026 Dept: D

MAGALI MIRANDA, ET AL. V. SAMANTHA YEYMYN

DAVILA

CASE NO.: 24NWCV03548

HEARING: 08/18/2026 @ 8:30 a.m.

#3

TENTATIVE RULING

The

Orders to Show Cause are DISCHARGED.

Petitioner

Berenice Hernandez's petition for expedited approval of compromise of disputed claim or pending action or disposition of proceeds of judgment for minor Claimant Patricio Miranda is DENIED. The Court sets a Hearing on Amended Expedited Petition to Approve Compromise of Disputed Claim or Pending Action or Disposition of Proceeds of Judgment for Minor on November 6, 2026, at 9:30am. Petitioner must file amended documents by September 18, 2026.

Moving Party to give notice.

Petitioner

Berenice Herndanez (Petitioner) brings this petition for approval of compromise of claim or action or disposition of proceeds of judgment as the Guardian ad litem and parent of the minor Claimant Patricio Miranda. (Claimant).

Legal Standard

Compromises of disputed

claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use "a reasonable fee standard" when approving and allowing the amount of attorneys' fees payable from money to be paid for the benefit of a minor and requires that courts "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor contemplated that the attorneys' fee would be affected by later events." CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Analysis

The Court has reviewed the expedited petition filed on May 8, 2026, by Petitioner on behalf of Claimant.

Petitioner has submitted a completed Judicial Council form MC-350EX on behalf of the minor Claimant, signed by Petitioner, together with a proposed Order Approving Compromise (form MC-351).

Petitioner seeks court approval of a settlement under which Claimant will receive a gross settlement of \$5,000.00. Petitioner also requests attorney's fees in the amount of \$1,250.00, representing 25% of the gross settlement. The fee request is supported by counsel's declaration addressing the applicable factors under California Rules of Court, rule 7.955(b), and the contingency fee agreement, submitted as Attachment 14(a).

After payment of the requested attorney's fees, \$282.56 in medical expenses, and \$217.00 in costs, the petition reflects that Claimant's net recovery is \$3,250.44, to be paid to Petitioner, in her representative capacity pursuant to Probate Code sections 3401 and 3402.

However, the Court DENIES the petition without prejudice for the following reasons:

No proof of service on the other parties has been filed and no proof of service appears to be attached to the petition.

Attachment 9 is deficient. Although Petitioner represents that Claimant has completely recovered and has no permanent injuries, the attached medical records concern Claimant's December 2022 hospitalization and do not include a report addressing Claimant's current condition or otherwise establish that the prior records accurately describe his current condition.

Item 2 incorrectly identifies Claimant's age as 10. Claimant's date of birth is listed as January 22, 2014, making him 12 years old as of the filing of the petition.

Item 12(b)(1) appears incorrect. The petition states that \$30,000.00 was offered to persons other than Claimant, but Item 12(b)(3) and Attachment 12 reflect payments of \$10,000.00 to Magali Miranda and \$15,000.00 to Katherine Miranda, totaling \$25,000.00.

Item 3(g)(2) appears to have been selected in error. The petition reflects an aggregate settlement of \$30,000.00 for Claimant and the other claimants and therefore appears to qualify for expedited approval under Item 3(g)(1), which applies where the total settlement payable to the claimant and all other persons is \$50,000.00 or less.

Item 11(c) states that the terms of the settlement are set forth in Attachment 11(c), but no Attachment 11(c) appears to have been submitted.

The petition and proposed order are inconsistent as to the settling payer. Item 11 of the petition identifies the settling payer as "AAA – UM," while Item 4 of the proposed order identifies the payer as "AAA – UIM." The proposed order should be corrected to conform to the petition, or the petition should otherwise clarify the correct payer.

Conclusion

The Orders to Show Cause are DISCHARGED.

Petitioner Berenice

Hernandez's petition for expedited approval of compromise of disputed claim or pending action or disposition of proceeds of judgment for minor Claimant Patricio Miranda is DENIED. The Court sets a Hearing on Amended Expedited Petition to Approve Compromise of Disputed Claim or Pending Action or Disposition of Proceeds of Judgment for Minor on November 6, 2026, at 9:30am. Petitioner must file amended documents by September 18, 2026.